

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 36-009

Amendments to Titles 10 and 18 of the Chickasaw Nation Code (Finance and Taxation; Real and Personal Property)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for real and personal property, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

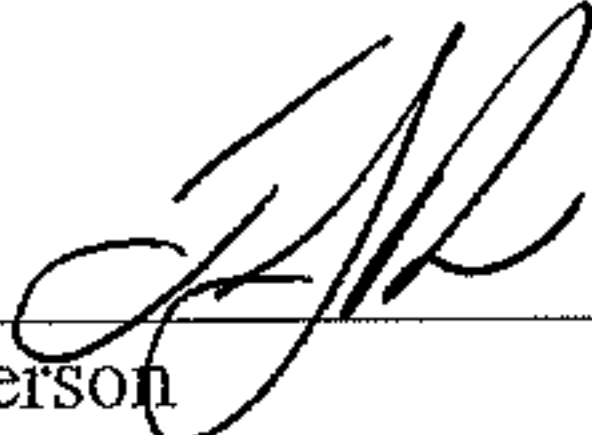
NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 10, Chapter 2, Section 10-201.4, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“6. Buildings which are ancillary to a previously approved construction budget, including, but not limited to, buildings used for maintenance or storage, the funding for which is not deriving from the Development Budget and such building is less than one thousand square feet, shall not be subject to this Section.”

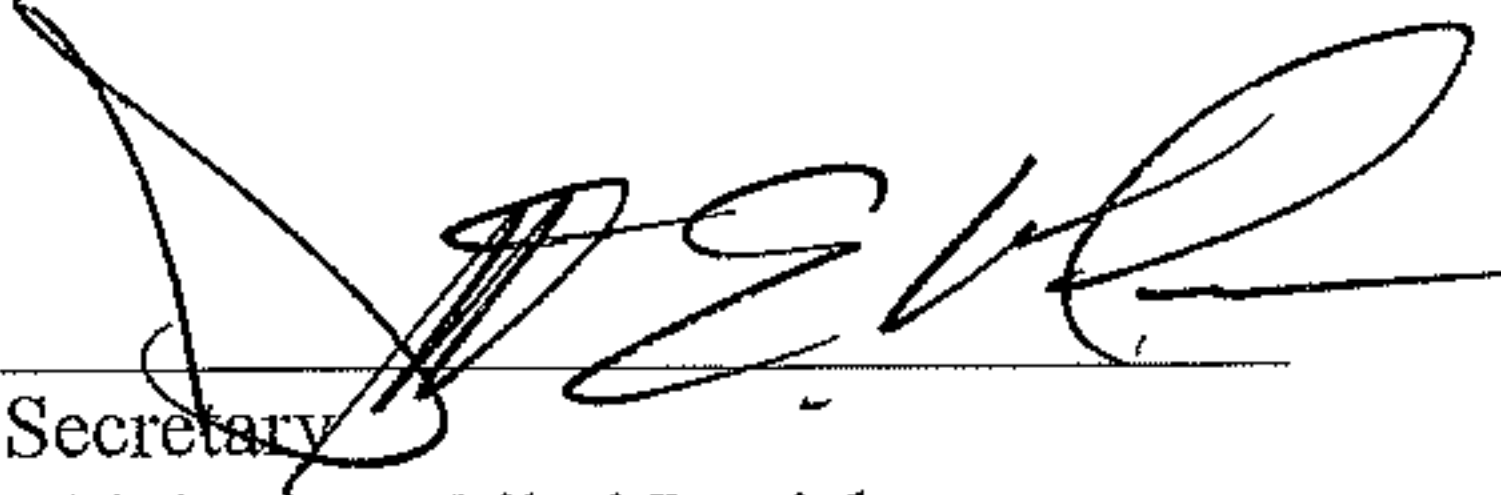
BE IT FURTHER RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 18, Chapter 1 Section 18-100.6(B) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“B. All new construction of buildings to be located on tribal real property shall be submitted for approval to the Legislature. Such submissions shall include, as a minimum, explanation of each planned structure, its purpose, any revenues to be generated, source of payment associated with costs of construction, and details regarding the structure itself. Buildings which are ancillary to a previously approved construction budget, including, but not limited to, buildings used for maintenance or storage, the funding for which is not deriving from the Development Budget and such building is less than one thousand square feet, shall not require approval of the Legislature. The Legislature shall act upon the request for construction, subject to the concurrence of the Governor.”

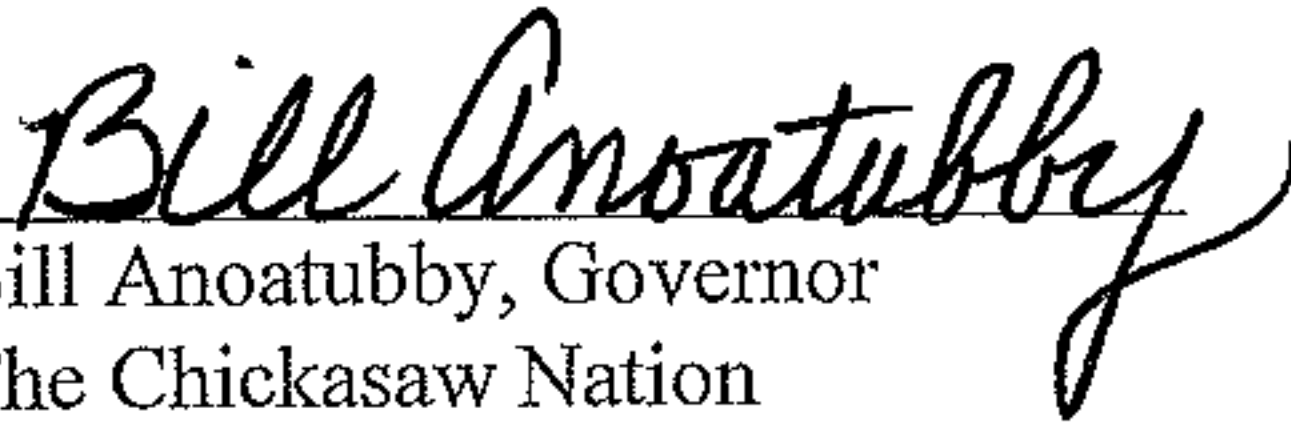
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 20, 2019, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 20 2019

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 36-009

**Amendments to Titles 10 and 18 of the Chickasaw Nation Code
(Finance and Taxation; Real and Personal Property)**

Explanation: This resolution amends one section in Title 10 and one section in Title 18. The amendment allows for construction of buildings that are ancillary to a previously approved construction project to be constructed without approval of the Chickasaw Nation Tribal Legislature.

Presented by: Chickasaw Tribal Legislature, Legislative Committee